

contradictory judgments.” [citation].

Here, the second sentence of the agreement states: “This agreement to arbitrate (“Arbitration Agreement”) is governed by the Federal Arbitration Act (“FAA”); but if the FAA is inapplicable for any reason, then this Arbitration Agreement is governed by the laws of the State of Delaware, including Del. Code tit. 10, § 5701 et seq., without regard to choice of law principles.” (Carr Decl., Ex. 3, p. 22, ¶ 17.) None of the parties here advocate for applying Delaware law. Delaware law is also not necessary to consider here because the FAA’s invocation is controlling.

Typically, the “FAA’s *procedural* provisions (9 U.S.C. §§ 3, 4, 10, 11) do not apply unless the contract contains a choice-of-law clause expressly incorporating them.” (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 345 [citation omitted].) However, when parties specify, as they did here, that the agreement is governed by the FAA, the statement is sufficiently broad to encompass both the procedural and substantive provisions of the FAA. (*Victrola 89, LLC, supra*, 46 Cal.App.5th at 355 [holding that parties may voluntarily elect to have the FAA govern enforcement of the arbitration agreement, and that “pursuant to the FAA” was broad enough to displace state procedural rules].)

Because the agreement here provides expressly that the FAA governs, and because the Court holds this includes both procedural and substantive terms, the Court has fewer options than those available under Code of Civil Procedure section 1281.2. This is because, based on preemption principles, “the court’s only option in these circumstances is to stay the court proceeding and compel the arbitration.” (*Rodriguez, supra*, 136 Cal.App.4th at 1115.)

Third-party defendants’ argument that the claims here are not subject to arbitration based on an exception in the agreement (based on Code of Civil Procedure § 1281.2), is meritless. The language in the agreement excepts from arbitration certain “types of claims” including “claims that may not be subject to arbitration as a matter of generally applicable law not preempted by the FAA.” The exception for “claims not subject to arbitration” appears in a list of categorical exceptions such as small claims actions, PAGA actions, workers’ compensation claims, state disability insurance claims, unemployment insurance claims, and sexual assault claims. These are particular categories of claims. Code of Civil Procedure § 1281.2 does not describe any particular category of claims.

Accordingly, the motion must be granted. Lyft and plaintiff shall submit the action to arbitration and the action is otherwise stayed, including all proceedings against D & A Carrier, Inc.; Jose Noriega, Michael Jenkins, and Intervenor, Mobilitas Insurance Company, as well as any cross-actions filed by the parties.

**5. 9:00 AM CASE NUMBER: C25-02220**

**CASE NAME: MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC. VS. NANCY YEE**

**\*HEARING ON MOTION IN RE: STRIKE PLTFS STRIKE REQUEST FOR ENTRY AND/OR VACATE CLERK  
DEFAULT**

**FILED BY: 2246 LAKE CREST COURT LAND TRUST**

**\*TENTATIVE RULING:\***

**Introduction**

Before the Court is Defendants Nancy Ngyuen Yee and Robert Frank Yee’s motion for an order:

- 1) Striking Plaintiff's Request for Entry of Default filed October 27, 2025, and/or
- 2) Preemptively vacating any default entered thereafter, as void under CCP §473(d), for lack of valid service.

Defendants Nancy Ngyuen Yee and Robert Frank Yee's Motion to Strike or Vacate Default for the five listed entities ("Entity Defendants") and trusts in the Declaration of Robert Frank Yee:

1. 2246 Lake Crest Court Land Trust
2. RK Legacy Holdings
3. Ahtohallan Holdings Incorporated
4. Ex Amino Aeternum Express Trust
5. Noble Invicta Aeternum Express Trust

Defendants Nancy Ngyuen Yee and Robert Frank Yee bring their Motion on the grounds that Plaintiffs failed to effectuate valid service of process on any of the Entity Defendants.

Defendants Nancy Ngyuen Yee and Robert Frank Yee filed their motion on November 17, 2025, while Plaintiffs Mortgage Electronic Registration Systems, INC.; and Newrez, LLC DBA Shellpoint Mortgage Servicing FKA Specialized Loan Servicing, LLC opposed the motion on February 20, 2026. Defendants filed a reply on February 27, 2026.

For the reasons explained below, **Defendants Nancy Ngyuen Yee and Robert Frank Yee's Motion to Strike or Vacate Default is DENIED.**

#### **Procedural Background**

This lawsuit was filed on August 4, 2025. Plaintiffs determined that Robert Frank Yee and Nancy Nguyen Yee were authorized to accept service on behalf of all named Defendants, either individually, as an authorized agent, or as an attorney-in-fact. (Mika Decl. ¶¶ 4-5, Ex. 1.)

Plaintiffs contend that on September 24, 2025, all parties, except for Nancy Nguyen Yee were served via personal service on Robert Frank Yee. (Mika Decl. ¶ 7, Ex. 2.) Defendant Robert Frank Yee confirmed his identity with the process server and told the process server he would not accept service on behalf of any business entity or trust. (Yee Declaration ¶¶ 3-4.) The process server placed the summons and complaints on the ground outside the residence and took photos of them. (Yee Declaration ¶¶ 5-6.)

Since previous attempts on Nancy Nguyen Yee had been unsuccessful, Plaintiffs contend Nancy Nguyen Yee was served by substitute service. (Mika Decl. ¶ 8, Ex. 3.) Courtesy copies were also mailed to Nancy Nguyen Yee. (*Id.*) Defendant Nancy Ngyuen Yee disputes that she received courtesy copies by mail.

Plaintiffs' position is that since all parties could be served via Robert Frank Yee, all parties were aware of the lawsuit. (Mika Decl. ¶ 9.) Only Robert Frank Yee and Nancy Nguyen Yee filed a responsive pleading via a demurrer to the complaint. (*Id.*) As a result, on October 27, 2025, Plaintiffs filed a request for default as to all defendants except Robert Frank Yee and Nancy Nguyen Yee, and entry of the default was entered that same day. (Mika Decl. ¶ 10.)

Defendants Robert Frank Yee and Nancy Nguyen Yee now seek to set aside the defaults on behalf of the other entity and trust Defendants.

### **Legal Standard**

“A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of such delivery.” (Code Civ. Proc., § 415.10.) “[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void.” (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1444 [internal citation omitted].)) CCP § 473(d) allows a court to set aside a void judgment without any mention of a time limit. (*Lee v. An* (2008) 168 Cal.App.4th 558, 563; see also *Heidary v. Yadollahi* (2002) 99 Cal.App.4th 857, 862.)

The trial court has broad discretion to vacate the judgment and/or the clerk’s entry of default that preceded it. That discretion can be exercised only if the moving party (defendant) establishes a proper ground for relief, by the proper procedure, and within the time limits below. (See *Cruz v. Fagor America, Inc.* (2007) 146 Cal.App.4th 488, 495.) Motions under CCP § 473(d) to vacate a judgment allegedly void for lack of service, based on extrinsic evidence, must be brought within a “reasonable time” after entry of default. (*California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 212, 225-226 [disapproving prior authority that applied 2-year time limit to § 473(d) motions to vacate].)

A judge has no statutory authority under CCP § 473(d) to set aside a judgment that is not void. (*Cruz v. Fagor Am., Inc.* 146 Cal.App.4th at 495–496; A. [§ 1.49] Judge’s Inherent Authority to Set Aside Void Judgment; Party’s CCP § 473(d) Motion, Cal. Judges Benchbook Civ. Proc. After Trial § 1.49.) Only void orders, not voidable orders, may be set aside under CCP § 473(d). (D. [§ 6.56] Motion for Relief From Void Order Under CCP § 473(d), Cal. Judges Benchbook Civ. Proc. Before Trial § 6.56.) An order is void on its face only when the invalidity is apparent from an inspection of the judgment roll or court record without considering extrinsic evidence. (*Pittman v. Bec, Apartments, Ltd.* (2018) 20 Cal.App.5th 1009, 1021.) There is no time limit for attacking an order that is void on its face. (*Id.*) If the invalidity can be shown only by extrinsic evidence, such as declarations or testimony, the order is not void on its face and must be challenged within the 6-month time limit prescribed by CCP § 473(b). (D. [§ 6.56] Motion for Relief From Void Order Under CCP § 473(d), Cal. Judges Benchbook Civ. Proc. Before Trial § 6.56.)

Substantial compliance with the service of summons statutes may be sufficient to defeat a motion under CCP § 473(d). (*Gibble v. Car-Lene Research, Inc.* (1998) 67 Cal.App.4th 295, 313; *Ramos v. Homeward Residential, Inc.* (2014) 223 Cal.App.4th 1434, 1443-1444.)

### **Analysis**

#### **Defendants Nancy Nguyen Yee and Robert Frank Yee Cannot Represent Any of the Entity Defendants**

Business and Professions Code § 6125 prohibits anyone who is not an active member of the State Bar of California from practicing law. Code of Civil Procedure § 128(a)(5) gives courts authority to prevent unauthorized practice of law in proceedings before them.

Defendants Robert Frank Yee and Nancy Nguyen Yee attempt to strike or vacate default of the five

Entity Defendants listed in the Declaration of Robert Frank Yee. (R.F. Yee Decl. ¶ 9.)

### **Entity Defendants**

“The rights and liabilities of corporations are distinct from the persons composing it. Thus, a corporation cannot appear in court except through an agent. In purporting to represent the corporation in court, that agent is engaged in the practice of law. Only persons who are active members of the State Bar may practice law.” (*Clean Air Transp. Sys. v. San Mateo County Transit Dist.* (1988) 198 Cal.App.3d 576, 578.) A lay person who purports to represent a corporation is engaged in the unlawful practice of law. (*Merco Constr. Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 729-30.) This reasoning applies by analogy to unincorporated associations. (*Clean Air Transp. Sys. v. San Mateo County Transit Dist.* (1988) 198 Cal.App.3d 576, 579.)

Defendants RK Legacy Holdings and Ahtohallan Holdings Incorporated are both business entities. Defendant Ahtohallan Holdings is incorporated, and it is unclear from the papers what type of entity RK Legacy Holdings is. Regardless, both Defendants RK Legacy Holdings and Ahtohallan Holdings cannot be represented by a lay person, and both must be represented an active member of the State Bar. Defendants Nancy Ngyuen Yee and Robert Frank Yee are not practicing attorneys in California and cannot represent Defendants RK Legacy Holdings and Ahtohallan Holdings in this matter.

### **Trust Defendants**

Generally, a trustee who is not a lawyer cannot appear as a self-represented litigant in legal proceedings to protect assets of the trust. “A non-attorney trustee who represents the trust in court is representing and affecting the interests of the beneficiary [or the settlor] and is thus engaged in the unauthorized practice of law.” (*Ziegler v. Nickel* (1998) 64 Cal.App.4th 545, 549; see also Bus. & Prof. Code, § 6125.)

However, “a trustee litigating on behalf of a trust in which he as the settlor has designated himself the sole beneficiary is not representing the interests of others. The interest he represents is his own.” (*Aulisio v. Bancroft* (2014) 230 Cal.App.4th 1516, 1524.) In other words, pro per parties only have the right to represent a trust when they are the only settlor, beneficiary and trustee. (See *Boshernitsan v. Bach* (2021) 61 Cal. App. 5th 883, 894 [Although generally non-attorney trustees cannot appear in propria persona because they are representing the interests of others, a trustee who is also the only settlor and beneficiary “does not appear in court proceedings concerning the trust in a representative capacity.”].)

Here, each of the trusts are comprised of multiple parties and therefore must be represented by an attorney. First, the 2246 Lake Crest Court Land Trust lists RK Legacy Holdings, Inc. as the beneficiary and Ahtohallan Holdings, Inc. as the trustee. EX AMINO AETERNUM EXPRESS TRUST d/b/a EX AMINO AETERNUM lists Nancy Nguyen Yee as settlor and Bercy De La Cruz as trustee. NOBLE INVICTA AETERNUM EXPRESS TRUST d/b/a NOBLE INVICTA AETERNUM lists Robert Frank Yee as settlor and Bercy De La Cruz as trustee and the Court notes that Defendant Robert Frank Yee signs on her behalf as power of attorney.

Accordingly, Robert Frank Yee and Nancy Nguyen Yee cannot represent the interests any of the five listed defaulted entities 2246 Lake Crest Court Land Trust, RK Legacy Holdings, Ahtohallan Holdings

Incorporated, Ex Amino Aeternum Express Trust, or Noble Invicta Aeternum Express Trust.

### **Conclusion**

For the reasons analyzed above, For the reasons explained below, **Defendants Nancy Ngyuen Yee and Robert Frank Yee's Motion to Strike or Vacate Default is DENIED.**

**6. 9:00 AM CASE NUMBER: MSC22-00300**

**CASE NAME: AZAMEY VS CARAPIA**

**\*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS AS TO CARAPIAS' CLAIMS FOR INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

**FILED BY: AZAMEY, MARIAM**

**\*TENTATIVE RULING:\***

Before the Court is Plaintiff and Cross-Defendant Mariam Azamey and Plaintiff James Unger (collectively, "Cross-Defendants")'s motion for judgment on the pleadings ("MJOP"). The MJOP relates to Defendant and Cross-Complainant Maureen Carapia and Jorge Carapia (collectively, "Cross-Complainants")'s claims for intentional and negligent infliction of emotional distress.

For the following reasons, the MJOP is **granted**, with leave to amend.

### **Brief Factual Allegations and Procedural Background**

This is a property dispute between neighbors regarding an easement. Plaintiffs' Property is the dominant tenement of a 20-foot-wide easement that lies 12.5 feet on the Carapia Property and 7.5 feet on the Parker Property. (FAC at ¶ 8.) They allege several encroachments on this easement since their purchase of the property including overgrown vegetation, inoperable vehicles, and a screened patio. (*Id.* at ¶ 10(a).) Plaintiffs also allege that Carapias have maintained a fence within the 12.5 foot portion of the easement on the Carapia Property. (*Id.* at ¶ 10(b).)

Defendant Parker filed a Cross-Complaint for (1) trespass, (2) negligence, (3) intentional infliction of emotional distress, (4) negligent infliction of emotional distress, and (5) civil conspiracy on April 12, 2022.

The Carapia Defendants filed a Cross-Complaint for (1) quiet title based on adverse possession, (2) trespass, (3) negligence, (4) intentional infliction of emotional distress, (5) negligent infliction of emotional distress, and (6) civil conspiracy on April 13, 2022.

Plaintiffs filed a verified first amended complaint for (1) quiet title, (2) declaratory relief, (3) easement by necessity, (4) nuisance, (5) negligence per se, (6) slander of title, and (7) injunctive relief on November 29, 2022.

### **Legal Standard**

The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.) As a consequence, it may be granted if, from the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Code Civ. Proc. § 438(d); *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5; Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) § 7:292.) As such, a motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell*